



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars

22FL003144

Date of Hearing: 02/07/2024

Hearing Start Time: 1:30 PM

Hearing Type: Request for Order: Mod
Custody/Visitation

Comments: Line 3-11

Heard By: Lowney, Stephen
Courtroom Reporter: No Court Reporter

Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:

Parties Present:

Mars, Hanna	Respondent
Mars, Kostiantyn	Petitioner
Roberts, Nancy Lee	Attorney
	Limited Scope
	Attorney

Future Hearings:

Exhibits:

All above listed parties are personally present.

Respondent is assisted by Ukrainian interpreter, Mariya Rekretiyuk.

Petitioner and respondent are sworn.

Service issues are addressed.

The Court finds, in lieu of personal service, electronic service deemed appropriate and valid going forward.

Hearing on petitioner's motion to disqualify attorney Nancy Roberts.

The Court hears from the parties.

The Court is not going to reconsider the prior ruling.

Hearing on petitioner's Request for Order: modification child custody and visitation.

The Court reserves on this issue of modification of child custody and visitation, and any request made in this motion.

Hearing on petitioner's motion to set aside the 06-29-2023 order.

The Court denies petitioner's motion to set aside the 06-29-2023 order.

A printed copy of the 06-29-2023 order is printed by the Court and handed to petitioner in Court by the deputy.



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Hearing on petitioner's motion to set aside the 07-31-2023 order.

The Court denies petitioner's motion to set aside the 07-31-2023 order.

Second hearing set on petitioner's motion to set aside the 07-31-2023 order is a duplicate setting.

Hearing on respondent's request for order, to declare petitioner a Vexatious Litigant.

Parties to file with the Court further briefings on this issue by 02-23-2024.

The Court will provide an answer by 03-08-2024.

Hearing on respondent's request for petitioner to comply with the Court order and have petitioner provide minor child's legal documents to attorney Nancy Robert.

Petitioner's request for a rehearing of this issue is DENIED.

The Court orders petitioner to comply with this order and deliver all of the minor's legal documents to attorney Nancy Robert's office by 02-16-2024 by close of business.

Hearing on respondent's request for petitioner to comply with the Court order re: the VW Tiguan vehicle. Petitioner is ordered to provide the statement of the current loan balance to respondent; respondent will pay off the balance of the loan. Within 24 hours of petitioner receiving the title for this vehicle, petitioner must transfer the title to respondent, forthwith.

Hearing on respondent's request for petitioner to comply with the Court order re: the division of petitioner's 401K through his place of employment.

Parties are ordered to comply with the 08-29-2023 order re: QDRO.

A printed copy of the 08-29-2023 order is printed by the Court and handed to petitioner in Court by the deputy.

Mutual requests for DVRO is set for trial on 06-17-2024 at 9:00 am in department 79.

Time estimate: 1/2 day.

Parties are instructed to be personally present for the trial; parties to electronically file exhibits and not email the exhibits to the department email.

The Court authorizes electronic service for both sides.

The parties are to file and exchange/serve any declarations/exhibits/witness lists 5-days prior to the trial.

Mutual DVTROs are extended to 06-17-2024.

The Clinic to prepare the order for the petitioner.

Attorney Nancy Robert to prepare the order for respondent.



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The Court VACATES the 03-05-2024 status conference hearing date.

Attorney Nancy Robert to prepare the order after hearing.
